



File No.: EXP202301220

RESOLUTION OF RECOURSE FOR RECONSIDERATION

Examined the recourse for reconsideration filed by A.A.A. (hereinafter, the appellant), against the resolution issued by the Director of the Spanish Agency for Data Protection, dated October 18, 2023, and based on the following:

FACTS

FIRST: On October 18, 2023, a resolution was issued by the Director of the Spanish Agency for Data Protection in file EXP202301220. The resolution was notified to the appellant on November 30, 2023, through the publication of the notification announcement in the Official State Gazette due to the unsuccessful postal notification in accordance with Art. 44 LPACAP, as evidenced in the file.

SECOND: On April 23, 2024, the appellant submitted a recourse for reconsideration to the AEPD against the resolution indicated in the previous point, expressing their disagreement with it.

The following legal grounds apply to the aforementioned facts:

LEGAL GROUNDS

I

Competence

The Director of the Spanish Agency for Data Protection is competent to resolve the present recourse in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) and Article 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD).

II

Grounds for inadmissibility

Article 116 of the LPACAP establishes in its paragraph d) as a ground for inadmissibility of administrative recourses "Having elapsed the period for filing the recourse."

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III

Calculation of the filing period

According to the provisions of Article 124 of the LPACAP: "The period for filing the recourse for reconsideration shall be one month, if the act is express."

Article 119 of this law adds that: "The resolution of the recourse will either uphold in whole or in part or dismiss the claims made therein or declare its inadmissibility."

Regarding the calculation of the specified period, it must be attended to the provisions of paragraph 4 of Article 30 of the LPACAP, which states: "If the period is set in months or years, these will be calculated from the day following that on which the notification or publication of the act in question takes place, or from the day following that on which the estimation or dismissal by administrative silence occurs."

The period will conclude on the same day on which the notification, publication, or administrative silence occurred in the month or year of expiration. If in the month of expiration there is no equivalent day to that on which the calculation begins, it will be understood that the period expires on the last day of the month."

In this case, the resolution of the Director of the Spanish Agency for Data Protection dated October 18, 2023, was notified to the appellant on November 30, 2023, through the publication of the notification announcement in the Official State Gazette due to the unsuccessful postal notification in accordance with Art. 44 LPACAP, and the recourse for reconsideration was filed on April 23, 2024.

Therefore, it can be concluded that the filing of the recourse for reconsideration on the indicated date

exceeds the legally established filing period, and thus the recourse must be declared inadmissible as out of time.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE INADMISSIBLE the recourse for reconsideration filed by A.A.A. against the resolution of this Agency, issued on October 18, 2023, in file EXP202301220.

SECOND: TO NOTIFY this resolution to A.A.A.

Against this resolution, which concludes the administrative procedure, a contentious-administrative appeal may be filed within a period of two months from the day following the notification of this act, in accordance with the provisions of Article 46.1 of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of the aforementioned Law.

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